

COMMITTEE ON NATURAL RESOURCES
SENATE AMENDMENTS TO S.B. 1519
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-101, Arizona Revised Statutes, is amended to
3 read:

4 28-101. Definitions

5 In this title, unless the context otherwise requires:

6 1. "Alcohol" means any substance containing any form of alcohol,
7 including ethanol, methanol, propynol and isopropynol.

8 2. "Alcohol concentration" if expressed as a percentage means
9 either:

10 (a) The number of grams of alcohol per one hundred milliliters of
11 blood.

12 (b) The number of grams of alcohol per two hundred ten liters of
13 breath.

14 3. "All-terrain vehicle" means either of the following:

15 (a) A motor vehicle that satisfies all of the following:

16 (i) Is designed primarily for recreational nonhighway all-terrain
17 travel.

18 (ii) Is fifty or fewer inches in width.

19 (iii) Has an unladen weight of one thousand two hundred pounds or
20 less.

21 (iv) Travels on three or more nonhighway tires.

22 (v) Is operated on a public highway.

23 (b) A recreational off-highway vehicle that satisfies all of the
24 following:

25 (i) Is designed primarily for recreational nonhighway all-terrain
26 travel.

27 (ii) Is eighty or fewer inches in width.

28 (iii) Has an unladen weight of ~~two~~ THREE thousand five hundred
29 pounds or less.

- 1 (iv) Travels on four or more nonhighway tires.
- 2 (v) Has a steering wheel for steering control.
- 3 (vi) Has a rollover protective structure.
- 4 (vii) Has an occupant retention system.
- 5 4. "Authorized emergency vehicle" means any of the following:
- 6 (a) A fire department vehicle.
- 7 (b) A police vehicle.
- 8 (c) An ambulance or emergency vehicle of a municipal department or
- 9 public service corporation that is designated or authorized by the
- 10 department or a local authority.
- 11 (d) Any other ambulance, fire truck or rescue vehicle that is
- 12 authorized by the department in its sole discretion and that meets
- 13 liability insurance requirements prescribed by the department.
- 14 5. "Autocycle" means a three-wheeled motorcycle on which the driver
- 15 and passengers ride in a fully or partially enclosed seating area that is
- 16 equipped with a roll cage, safety belts for each occupant and antilock
- 17 brakes and that is designed to be controlled with a steering wheel and
- 18 pedals.
- 19 6. "Automated driving system" means the hardware and software that
- 20 are collectively capable of performing the entire dynamic driving task on
- 21 a sustained basis, regardless of whether it is limited to a specific
- 22 operational design domain.
- 23 7. "Automotive recycler" means a person that is engaged in the
- 24 business of buying or acquiring a motor vehicle solely for the purpose of
- 25 dismantling, selling or otherwise disposing of the parts or accessories
- 26 and that removes parts for resale from six or more vehicles in a calendar
- 27 year.
- 28 8. "Autonomous vehicle" means a motor vehicle that is equipped with
- 29 an automated driving system.
- 30 9. "Aviation fuel" means all flammable liquids composed of a
- 31 mixture of selected hydrocarbons expressly manufactured and blended for
- 32 the purpose of effectively and efficiently operating an internal
- 33 combustion engine for use in an aircraft but does not include fuel for jet
- 34 or turbine powered aircraft.
- 35 10. "Bicycle" means a device, including a racing wheelchair, that
- 36 is propelled by human power and on which a person may ride and that has
- 37 either:
- 38 (a) Two tandem wheels, either of which is more than sixteen inches
- 39 in diameter.
- 40 (b) Three wheels in contact with the ground, any of which is more
- 41 than sixteen inches in diameter.
- 42 11. "Board" means the transportation board.
- 43 12. "Bus" means a motor vehicle designed for carrying sixteen or
- 44 more passengers, including the driver.
- 45 13. "Business district" means the territory contiguous to and
- 46 including a highway if there are buildings in use for business or
- 47 industrial purposes within any six hundred feet along the highway,
- 48 including hotels, banks or office buildings, railroad stations and public

1 buildings that occupy at least three hundred feet of frontage on one side
2 or three hundred feet collectively on both sides of the highway.

3 14. "Certificate of ownership" means a paper or an electronic
4 record that is issued in another state or a foreign jurisdiction and that
5 indicates ownership of a vehicle.

6 15. "Certificate of title" means a paper document or an electronic
7 record that is issued by the department and that indicates ownership of a
8 vehicle.

9 16. "Combination of vehicles" means a truck or truck tractor and
10 semitrailer and any trailer that it tows but does not include a forklift
11 designed for the purpose of loading or unloading the truck, trailer or
12 semitrailer.

13 17. "Controlled substance" means a substance so classified under
14 section 102(6) of the controlled substances act (21 United States Code
15 section 802(6)) and includes all substances listed in schedules I through
16 V of 21 Code of Federal Regulations part 1308.

17 18. "Conviction" means:

18 (a) An unvacated adjudication of guilt or a determination that a
19 person violated or failed to comply with the law in a court of original
20 jurisdiction or by an authorized administrative tribunal.

21 (b) An unvacated forfeiture of bail or collateral deposited to
22 secure the person's appearance in court.

23 (c) A plea of guilty or no contest accepted by the court.

24 (d) The payment of a fine or court costs.

25 19. "County highway" means a public road that is constructed and
26 maintained by a county.

27 20. "Dealer" means a person who is engaged in the business of
28 buying, selling or exchanging motor vehicles, trailers or semitrailers and
29 who has an established place of business and has paid fees pursuant to
30 section 28-4302.

31 21. "Department" means the department of transportation acting
32 directly or through its duly authorized officers and agents.

33 22. "Digital network or software application" has the same meaning
34 prescribed in section 28-9551.

35 23. "Director" means the director of the department of
36 transportation.

37 24. "Drive" means to operate or be in actual physical control of a
38 motor vehicle.

39 25. "Driver" means a person who drives or is in actual physical
40 control of a vehicle.

41 26. "Driver license" means a license that is issued by a state to
42 an individual and that authorizes the individual to drive a motor vehicle.

43 27. "Dynamic driving task":

44 (a) Means all of the real-time operational and tactical functions
45 required to operate a vehicle in on-road traffic.

46 (b) Includes:

47 (i) Lateral vehicle motion control by steering.

48 (ii) Longitudinal motion control by acceleration and deceleration.

- 1 (iii) Monitoring the driving environment by object and event
2 detection, recognition, classification and response preparation.
- 3 (iv) Object and event response execution.
- 4 (v) Maneuver planning.
- 5 (vi) Enhancing conspicuity by lighting, signaling and gesturing.
- 6 (c) Does not include strategic functions such as trip scheduling
7 and selecting destinations and waypoints.
- 8 28. "Electric bicycle" means a bicycle or tricycle that is equipped
9 with fully operable pedals and an electric motor of less than seven
10 hundred fifty watts and that meets the requirements of one of the
11 following classes:
- 12 (a) "Class 1 electric bicycle" means a bicycle or tricycle that is
13 equipped with an electric motor that provides assistance only when the
14 rider is pedaling and that ceases to provide assistance when the bicycle
15 or tricycle reaches the speed of twenty miles per hour.
- 16 (b) "Class 2 electric bicycle" means a bicycle or tricycle that is
17 equipped with an electric motor that may be used exclusively to propel the
18 bicycle or tricycle and that is not capable of providing assistance when
19 the bicycle or tricycle reaches the speed of twenty miles per hour.
- 20 (c) "Class 3 electric bicycle" means a bicycle or tricycle that is
21 equipped with an electric motor that provides assistance only when the
22 rider is pedaling and that ceases to provide assistance when the bicycle
23 or tricycle reaches the speed of twenty-eight miles per hour.
- 24 29. "Electric miniature scooter" means a device that:
- 25 (a) Weighs less than thirty pounds.
- 26 (b) Has two or three wheels.
- 27 (c) Has handlebars.
- 28 (d) Has a floorboard on which a person may stand while riding.
- 29 (e) Is powered by an electric motor or human power, or both.
- 30 (f) Has a maximum speed that does not exceed ten miles per hour,
31 with or without human propulsion, on a paved level surface.
- 32 30. "Electric personal assistive mobility device" means a
33 self-balancing device with one wheel or two nontandem wheels and an
34 electric propulsion system that limits the maximum speed of the device to
35 fifteen miles per hour or less and that is designed to transport only one
36 person.
- 37 31. "Electric standup scooter":
- 38 (a) Means a device that:
- 39 (i) Weighs less than seventy-five pounds.
- 40 (ii) Has two or three wheels.
- 41 (iii) Has handlebars.
- 42 (iv) Has a floorboard on which a person may stand while riding.
- 43 (v) Is powered by an electric motor or human power, or both.
- 44 (vi) Has a maximum speed that does not exceed twenty miles per
45 hour, with or without human propulsion, on a paved level surface.
- 46 (b) Does not include an electric miniature scooter.
- 47 32. "Evidence" includes both of the following:

1 (a) A display on a wireless communication device of a
2 department-generated driver license, nonoperating identification license,
3 vehicle registration card or other official record of the department that
4 is presented to a law enforcement officer or in a court or an
5 administrative proceeding.

6 (b) An electronic or digital license plate authorized pursuant to
7 section 28-364.

8 33. "Farm" means any lands primarily used for agriculture
9 production.

10 34. "Farm tractor" means a motor vehicle designed and used
11 primarily as a farm implement for drawing implements of husbandry.

12 35. "Foreign vehicle" means a motor vehicle, trailer or semitrailer
13 that is brought into this state other than in the ordinary course of
14 business by or through a manufacturer or dealer and that has not been
15 registered in this state.

16 36. "Fully autonomous vehicle" means an autonomous vehicle that is
17 equipped with an automated driving system designed to function as a level
18 four or five system under SAE J3016 and that may be designed to function
19 either:

20 (a) Solely by use of the automated driving system.

21 (b) By a human driver when the automated driving system is not
22 engaged.

23 37. "Golf cart" means a motor vehicle that has not less than three
24 wheels in contact with the ground, that has an unladen weight of less than
25 one thousand eight hundred pounds, that is designed to be and is operated
26 at not more than twenty-five miles per hour and that is designed to carry
27 not more than four persons including the driver.

28 38. "Gross combined weight rating" means the sum of the gross
29 vehicle weight rating of a motor vehicle and the trailer or semitrailer
30 the motor vehicle tows.

31 39. "Gross vehicle weight rating" means the weight that is assigned
32 by the motor vehicle manufacturer to a motor vehicle and that represents
33 the maximum recommended total weight, including the vehicle and the load
34 for the vehicle.

35 40. "Hazardous material" means a material, and its mixtures or
36 solutions, that the United States department of transportation determines
37 under 49 Code of Federal Regulations is, or any quantity of a material
38 listed as a select agent or toxin under 42 Code of Federal Regulations
39 part 73 that is, capable of posing an unreasonable risk to health, safety
40 and property if transported in commerce and that is required to be
41 placarded or marked as required by the department's safety rules
42 prescribed pursuant to chapter 14 of this title.

43 41. "Human driver" means a natural person in the vehicle who
44 performs in real time all or part of the dynamic driving task or who
45 achieves a minimal risk condition for the vehicle.

46 42. "Implement of husbandry" means a vehicle that is designed
47 primarily for agricultural purposes and that is used exclusively in the
48 conduct of agricultural operations, including an implement or vehicle that

1 uses an automated driving system or that is autonomous or that is
2 self-propelled or otherwise, whether operated manually, equipped with an
3 automated driving system that is not in use or equipped with an automated
4 driving system that is in use, and that meets both of the following
5 conditions:

6 (a) Is used solely for agricultural purposes, including the
7 preparation or harvesting of cotton, alfalfa, grains, specialty crops and
8 other farm crops. For the purposes of this subdivision, "specialty crops"
9 includes fruits, vegetables, tree nuts, dried fruits and horticulture and
10 nursery crops, including floriculture.

11 (b) Is only incidentally operated or moved on a highway whether as
12 a trailer or an autonomous vehicle or a self-propelled unit. For the
13 purposes of this subdivision, "incidentally operated or moved on a
14 highway" means travel between a farm and another part of the same farm,
15 from one farm to another farm or between a farm and a place of repair,
16 supply or storage.

17 43. "Limousine" means a motor vehicle providing prearranged ground
18 transportation service for an individual passenger, or a group of
19 passengers, that is arranged in advance or is operated on a regular route
20 or between specified points and includes ground transportation under a
21 contract or agreement for services that includes a fixed rate or time and
22 is provided in a motor vehicle with a seating capacity not exceeding
23 fifteen passengers including the driver.

24 44. "Livery vehicle" means a motor vehicle that:

25 (a) Has a seating capacity not exceeding fifteen passengers
26 including the driver.

27 (b) Provides passenger services for a fare determined by a flat
28 rate or flat hourly rate between geographic zones or within a geographic
29 area.

30 (c) Is available for hire on an exclusive or shared ride basis.

31 (d) May do any of the following:

32 (i) Operate on a regular route or between specified places.

33 (ii) Offer prearranged ground transportation service as defined in
34 section 28-141.

35 (iii) Offer on demand ground transportation service pursuant to a
36 contract with a public airport, licensed business entity or organization.

37 45. "Local authority" means any county, municipal or other local
38 board or body exercising jurisdiction over highways under the constitution
39 and laws of this state.

40 46. "Manufacturer" means a person engaged in the business of
41 manufacturing motor vehicles, trailers or semitrailers.

42 47. "Minimal risk condition":

43 (a) Means a condition to which a human driver or an automated
44 driving system may bring a vehicle in order to reduce the risk of a crash
45 when a given trip cannot or should not be completed.

46 (b) Includes bringing the vehicle to a complete stop.

47 48. "Moped" means a bicycle, not including an electric bicycle, an
48 electric miniature scooter or an electric standup scooter, that is

1 equipped with a helper motor if the vehicle has a maximum piston
2 displacement of fifty cubic centimeters or less, a brake horsepower of one
3 and one-half or less and a maximum speed of twenty-five miles per hour or
4 less on a flat surface with less than a one percent grade.

5 49. "Motorcycle" means a motor vehicle that has a seat or saddle
6 for the use of the rider and that is designed to travel on not more than
7 three wheels in contact with the ground but excludes a tractor, an
8 electric bicycle, an electric miniature scooter, an electric standup
9 scooter and a moped.

10 50. "Motor driven cycle" means a motorcycle, including every motor
11 scooter, with a motor that produces not more than five horsepower but does
12 not include an electric bicycle, an electric miniature scooter or an
13 electric standup scooter.

14 51. "Motorized quadricycle" means a self-propelled motor vehicle to
15 which all of the following apply:

16 (a) The vehicle is self-propelled by an emission-free electric
17 motor and may include pedals operated by the passengers.

18 (b) The vehicle has at least four wheels in contact with the
19 ground.

20 (c) The vehicle seats at least eight passengers, including the
21 driver.

22 (d) The vehicle is operable on a flat surface using solely the
23 electric motor without assistance from the pedals or passengers.

24 (e) The vehicle is a commercial motor vehicle as defined in section
25 28-5201.

26 (f) The vehicle is a limousine operating under a vehicle for hire
27 company permit issued pursuant to section 28-9503.

28 (g) The vehicle is manufactured by a motor vehicle manufacturer
29 that is licensed pursuant to chapter 10 of this title.

30 (h) The vehicle complies with the definition and standards for
31 low-speed vehicles set forth in 49 Code of Federal Regulations sections
32 571.3(b) and 571.500, respectively.

33 52. "Motor vehicle":

34 (a) Means either:

35 (i) A self-propelled vehicle.

36 (ii) For the purposes of the laws relating to the imposition of a
37 tax on motor vehicle fuel, a vehicle that is operated on the highways of
38 this state and that is propelled by the use of motor vehicle fuel.

39 (b) Does not include a scrap vehicle, a personal delivery device, a
40 personal mobile cargo carrying device, a motorized wheelchair, an electric
41 personal assistive mobility device, an electric bicycle, an electric
42 miniature scooter, an electric standup scooter or a motorized skateboard.
43 For the purposes of this subdivision:

44 (i) "Motorized skateboard" means a self-propelled device that does
45 not have handlebars and that has a motor, a deck on which a person may
46 ride and at least two tandem wheels in contact with the ground.

47 (ii) "Motorized wheelchair" means a self-propelled wheelchair that
48 is used by a person for mobility.

1 53. "Motor vehicle fuel" includes all products that are commonly or
2 commercially known or sold as gasoline, including casinghead gasoline,
3 natural gasoline and all flammable liquids, and that are composed of a
4 mixture of selected hydrocarbons expressly manufactured and blended for
5 the purpose of effectively and efficiently operating internal combustion
6 engines. Motor vehicle fuel does not include inflammable liquids that are
7 specifically manufactured for racing motor vehicles and that are
8 distributed for and used by racing motor vehicles at a racetrack, use fuel
9 as defined in section 28-5601, aviation fuel, fuel for jet or turbine
10 powered aircraft or the mixture created at the interface of two different
11 substances being transported through a pipeline, commonly known as
12 transmix.

13 54. "Neighborhood electric shuttle":

14 (a) Means a self-propelled electrically powered motor vehicle to
15 which all of the following apply:

16 (i) The vehicle is emission free.

17 (ii) The vehicle has at least four wheels in contact with the
18 ground.

19 (iii) The vehicle is capable of transporting at least eight
20 passengers, including the driver.

21 (iv) The vehicle is a commercial motor vehicle as defined in
22 section 28-5201.

23 (v) The vehicle is a vehicle for hire as defined in section 28-9501
24 and operates under a vehicle for hire company permit issued pursuant to
25 section 28-9503.

26 (vi) The vehicle complies with the definition and standards for
27 low-speed vehicles set forth in 49 Code of Federal Regulations sections
28 571.3(b) and 571.500, respectively.

29 (b) Includes a vehicle that meets the standards prescribed in
30 subdivision (a) of this paragraph and that has been modified after market
31 and not by the manufacturer to transport up to fifteen passengers,
32 including the driver.

33 55. "Neighborhood electric vehicle" means a self-propelled
34 electrically powered motor vehicle to which all of the following apply:

35 (a) The vehicle is emission free.

36 (b) The vehicle has at least four wheels in contact with the
37 ground.

38 (c) The vehicle complies with the definition and standards for
39 low-speed vehicles, unless excepted or exempted under federal law, set
40 forth in 49 Code of Federal Regulations sections 571.3(b) and 571.500,
41 respectively.

42 56. "Neighborhood occupantless electric vehicle" means a
43 neighborhood electric vehicle that is not designed, intended or marketed
44 for human occupancy.

45 57. "Nonresident" means a person who is not a resident of this
46 state as defined in section 28-2001.

47 58. "Off-road recreational motor vehicle" means a motor vehicle
48 that is designed primarily for recreational nonhighway all-terrain travel

1 and that is not operated on a public highway. Off-road recreational motor
2 vehicle does not mean a motor vehicle used for construction, building
3 trade, mining or agricultural purposes.

4 59. "Operational design domain":

5 (a) Means operating conditions under which a given automated
6 driving system is specifically designed to function.

7 (b) Includes roadway types, speed range, environmental conditions,
8 such as weather or time of day, and other domain constraints.

9 60. "Operator" means a person who drives a motor vehicle on a
10 highway, who is in actual physical control of a motor vehicle on a highway
11 or who is exercising control over or steering a vehicle being towed by a
12 motor vehicle.

13 61. "Owner" means:

14 (a) A person who holds the legal title of a vehicle.

15 (b) If a vehicle is the subject of an agreement for the conditional
16 sale or lease with the right of purchase on performance of the conditions
17 stated in the agreement and with an immediate right of possession vested
18 in the conditional vendee or lessee, the conditional vendee or lessee.

19 (c) If a mortgagor of a vehicle is entitled to possession of the
20 vehicle, the mortgagor.

21 62. "Pedestrian" means any person afoot. A person who uses an
22 electric personal assistive mobility device or a manual or motorized
23 wheelchair is considered a pedestrian unless the manual wheelchair
24 qualifies as a bicycle. For the purposes of this paragraph, "motorized
25 wheelchair" means a self-propelled wheelchair that is used by a person for
26 mobility.

27 63. "Personal delivery device":

28 (a) Means a device that is both of the following:

29 (i) Manufactured for transporting cargo and goods in an area
30 described in section 28-1225.

31 (ii) Equipped with automated driving technology, including software
32 and hardware, that enables the operation of the device with the remote
33 support and supervision of a human.

34 (b) Does not include a personal mobile cargo carrying device.

35 64. "Personal mobile cargo carrying device" means an electronically
36 powered device that:

37 (a) Is operated primarily on sidewalks and within crosswalks and
38 that is designed to transport property.

39 (b) Weighs less than eighty pounds, excluding cargo.

40 (c) Operates at a maximum speed of twelve miles per hour.

41 (d) Is equipped with technology to transport personal property with
42 the active monitoring of a property owner and that is primarily designed
43 to remain within twenty-five feet of the property owner.

44 (e) Is equipped with a braking system that when active or engaged
45 enables the personal mobile cargo carrying device to come to a controlled
46 stop.

47 65. "Power sweeper" means an implement, with or without motive
48 power, that is only incidentally operated or moved on a street or highway

1 and that is designed for the removal of debris, dirt, gravel, litter or
2 sand whether by broom, vacuum or regenerative air system from asphaltic
3 concrete or cement concrete surfaces, including parking lots, highways,
4 streets and warehouses, and a vehicle on which the implement is
5 permanently mounted.

6 66. "Public transit" means the transportation of passengers on
7 scheduled routes by means of a conveyance on an individual passenger
8 fare-paying basis excluding transportation by a sightseeing bus, school
9 bus or taxi or a vehicle not operated on a scheduled route basis.

10 67. "Reconstructed vehicle" means a vehicle that has been assembled
11 or constructed largely by means of essential parts, new or used, derived
12 from vehicles or makes of vehicles of various names, models and types or
13 that, if originally otherwise constructed, has been materially altered by
14 the removal of essential parts or by the addition or substitution of
15 essential parts, new or used, derived from other vehicles or makes of
16 vehicles. For the purposes of this paragraph, "essential parts" means
17 integral and body parts, the removal, alteration or substitution of which
18 will tend to conceal the identity or substantially alter the appearance of
19 the vehicle.

20 68. "Residence district" means the territory contiguous to and
21 including a highway not comprising a business district if the property on
22 the highway for a distance of three hundred feet or more is in the main
23 improved with residences or residences and buildings in use for business.

24 69. "Right-of-way" when used within the context of the regulation
25 of the movement of traffic on a highway means the privilege of the
26 immediate use of the highway. Right-of-way when used within the context
27 of the real property on which transportation facilities and appurtenances
28 to the facilities are constructed or maintained means the lands or
29 interest in lands within the right-of-way boundaries.

30 70. "SAE J3016" means surface transportation recommended practice
31 J3016 taxonomy and definitions for terms related to driving automation
32 systems for on-road motor vehicles published by SAE international in June
33 2018.

34 71. "School bus" means a motor vehicle that is designed for
35 carrying more than ten passengers and that is either:

36 (a) Owned by any public or governmental agency or other institution
37 and operated for the transportation of children to or from home or school
38 on a regularly scheduled basis.

39 (b) Privately owned and operated for compensation for the
40 transportation of children to or from home or school on a regularly
41 scheduled basis.

42 72. "Scrap metal dealer" has the same meaning prescribed in section
43 44-1641.

44 73. "Scrap vehicle" has the same meaning prescribed in section
45 44-1641.

46 74. "Semitrailer" means a vehicle that is with or without motive
47 power, other than a pole trailer or single-axle tow dolly, that is
48 designed for carrying persons or property and for being drawn by a motor

1 vehicle and that is constructed so that some part of its weight and that
2 of its load rests on or is carried by another vehicle. For the purposes of
3 this paragraph, "pole trailer" has the same meaning prescribed in section
4 28-601.

5 75. "Single-axle tow dolly" means a nonvehicle device that is drawn
6 by a motor vehicle, that is designed and used exclusively to transport
7 another motor vehicle and on which the front or rear wheels of the drawn
8 motor vehicle are mounted on the tow dolly while the other wheels of the
9 drawn motor vehicle remain in contact with the ground.

10 76. "State" means a state of the United States and the District of
11 Columbia.

12 77. "State highway" means a state route or portion of a state route
13 that is accepted and designated by the board as a state highway and that
14 is maintained by the state.

15 78. "State route" means a right-of-way whether actually used as a
16 highway or not that is designated by the board as a location for the
17 construction of a state highway.

18 79. "Street" or "highway" means the entire width between the
19 boundary lines of every way if a part of the way is open to the use of the
20 public for purposes of vehicular travel.

21 80. "Taxi" means a motor vehicle that has a seating capacity not
22 exceeding fifteen passengers, including the driver, that provides
23 passenger services and that:

24 (a) Does not primarily operate on a regular route or between
25 specified places.

26 (b) Offers local transportation for a fare determined on the basis
27 of the distance traveled or prearranged ground transportation service as
28 defined in section 28-141 for a predetermined fare.

29 81. "Title transfer form" means a paper or an electronic form that
30 is prescribed by the department for the purpose of transferring a
31 certificate of title from one owner to another owner.

32 82. "Traffic survival school" means a school that is licensed
33 pursuant to chapter 8, article 7.1 of this title and that offers
34 educational sessions that are designed to improve the safety and habits of
35 drivers and that are approved by the department.

36 83. "Trailer" means a vehicle that is with or without motive power,
37 other than a pole trailer or single-axle tow dolly, that is designed for
38 carrying persons or property and for being drawn by a motor vehicle and
39 that is constructed so that no part of its weight rests on the towing
40 vehicle. A semitrailer equipped with an auxiliary front axle commonly
41 known as a dolly is deemed to be a trailer. For the purposes of this
42 paragraph, "pole trailer" has the same meaning prescribed in section
43 28-601.

44 84. "Transportation network company" has the same meaning
45 prescribed in section 28-9551.

46 85. "Transportation network company vehicle" has the same meaning
47 prescribed in section 28-9551.

1 86. "Transportation network service" has the same meaning
2 prescribed in section 28-9551.

3 87. "Truck" means a motor vehicle designed or used primarily for
4 the carrying of property other than the effects of the driver or
5 passengers and includes a motor vehicle to which has been added a box, a
6 platform or other equipment for such carrying.

7 88. "Truck tractor" means a motor vehicle that is designed and used
8 primarily for drawing other vehicles and that is not constructed to carry
9 a load other than a part of the weight of the vehicle and load drawn.

10 89. "Vehicle":

11 (a) Means a device in, on or by which a person or property is or
12 may be transported or drawn on a public highway.

13 (b) Does not include:

14 (i) Electric bicycles, electric miniature scooters, electric
15 standup scooters and devices moved by human power.

16 (ii) Devices used exclusively on stationary rails or tracks.

17 (iii) Personal delivery devices.

18 (iv) Scrap vehicles.

19 (v) Personal mobile cargo carrying devices.

20 90. "Vehicle transporter" means either:

21 (a) A truck tractor capable of carrying a load and drawing a
22 semitrailer.

23 (b) A truck tractor with a stinger-steered fifth wheel capable of
24 carrying a load and drawing a semitrailer or a truck tractor with a dolly
25 mounted fifth wheel that is securely fastened to the truck tractor at two
26 or more points and that is capable of carrying a load and drawing a
27 semitrailer.

28 Sec. 2. Section 28-1177, Arizona Revised Statutes, is amended to
29 read:

30 28-1177. Off-highway vehicle user fee; indicia; registration;
31 state trust land recreational permit; exception

32 A. A person shall not operate or allow the operation of an
33 all-terrain vehicle or an off-highway vehicle in this state without either
34 a resident or nonresident off-highway vehicle user indicia issued by the
35 department if the all-terrain vehicle or off-highway vehicle meets both of
36 the following criteria:

37 1. Is designed by the manufacturer primarily for travel over
38 unimproved terrain.

39 2. Has an unladen weight of ~~two~~ THREE thousand five hundred pounds
40 or less.

41 B. A person shall apply to the department of transportation for a
42 resident or nonresident off-highway vehicle user indicia by submitting an
43 application prescribed by the department of transportation and a user fee
44 for the indicia in an amount to be determined by the director of the
45 department of transportation in cooperation with the director of the
46 Arizona game and fish department and the Arizona state parks board. The
47 resident or nonresident off-highway vehicle user indicia is valid for one
48 year ~~from~~ AFTER the date of issuance and may be renewed. The department

1 OF TRANSPORTATION shall prescribe by rule the design and placement of the
2 indicia.

3 C. When a person pays for a resident off-highway vehicle user
4 indicia pursuant to this section, the person may request a motor vehicle
5 registration if the vehicle meets all equipment requirements to be
6 operated on a highway pursuant to article 16 of this chapter. If a person
7 submits a signed affidavit to the department affirming that the vehicle
8 meets all of the equipment requirements for highway use and that the
9 vehicle will be operated primarily off of highways, the department shall
10 register the vehicle for highway use and the vehicle owner is not required
11 to pay the registration fee prescribed in section 28-2003. This
12 subsection does not apply to vehicles that as produced by the manufacturer
13 meet the equipment requirements to be operated on a highway pursuant to
14 article 16 of this chapter.

15 D. The director shall deposit, pursuant to sections 35-146 and
16 35-147, seventy percent of the user fees collected pursuant to this
17 section in the off-highway vehicle recreation fund established by section
18 28-1176 and thirty percent of the user fees collected pursuant to this
19 section in the Arizona highway user revenue fund.

20 E. The Arizona game and fish department may provide for the
21 purchase of nonresident off-highway vehicle user indicia and may impose an
22 additional service fee in an amount to be determined by the Arizona game
23 and fish commission by rule. The Arizona game and fish department shall
24 deposit, pursuant to sections 35-146 and 35-147, the service fees
25 collected pursuant to this subsection in the game and fish fund
26 established by section 17-261.

27 F. An occupant of an off-highway vehicle with a resident or
28 nonresident off-highway vehicle user indicia issued pursuant to this
29 section who crosses state trust lands must comply with all of the rules
30 and requirements under a state trust land recreational permit. All
31 occupants of an off-highway vehicle with a resident or nonresident
32 off-highway vehicle user indicia shall obtain a state trust land
33 recreational permit from the state land department for all other
34 authorized recreational activities on state trust land.

35 G. This section does not apply to off-highway vehicles, all-terrain
36 vehicles or off-road recreational motor vehicles that are used off-highway
37 exclusively for agricultural, ranching, construction, mining, mining
38 exploration or building trade purposes.

39 H. In consultation with the department of transportation, the
40 Arizona game and fish department may adopt rules necessary to implement
41 this section.

42 <<Sec. 3. Section 28-5801, Arizona Revised Statutes, is amended to
43 read:

44 28-5801. Vehicle license tax rate; definitions

45 A. At the time of application for and before registration each year
46 of a vehicle, the registering officer shall collect the vehicle license
47 tax imposed by article IX, section 11, Constitution of Arizona. On the
48 taxpayer's vehicle license tax bill, the registering officer shall provide

1 the taxpayer with information showing the amount of the vehicle license
2 tax that each category of recipient will receive and the amount that is
3 owed by the taxpayer.

4 B. Except as provided in subsections C, D and E of this section:

5 1. During the first twelve months of the life of a vehicle as
6 determined by its initial registration, the vehicle license tax is based
7 on each \$100 in value, the value of the vehicle is sixty percent of the
8 manufacturer's base retail price of the vehicle and the vehicle license
9 tax rate for each of the recipients is as follows:

10 (a) The rate for the Arizona highway user revenue fund is \$1.26.

11 (b) The rate for the county general fund is \$.69.

12 (c) The rate for counties for any purposes related to
13 transportation, as determined by the board of supervisors, is \$.16.

14 (d) The rate for incorporated cities and towns is \$.69.

15 2. During each succeeding twelve-month period, the vehicle license
16 tax is based on each \$100 in value, the value of the vehicle is 16.25
17 percent less than the value for the preceding twelve-month period and the
18 vehicle license tax rate for each of the recipients is as follows:

19 (a) The rate for the Arizona highway user revenue fund is \$1.30.

20 (b) The rate for the county general fund is \$.71.

21 (c) The rate for counties for the same use as highway user revenue
22 fund monies is \$.17.

23 (d) The rate for incorporated cities and towns is \$.71.

24 3. The minimum amount of the vehicle license tax computed under
25 this section is \$10 per year for each vehicle that is subject to the tax.
26 If the product of all of the rates prescribed in paragraph 1 or 2 of this
27 subsection is less than \$10, the vehicle license tax is \$10. The vehicle
28 license tax collected pursuant to this paragraph shall be distributed to
29 the recipients prescribed in this subsection based on the percentage of
30 each recipient's rate to the sum of all of the rates.

31 C. The vehicle license tax is as follows for noncommercial trailers
32 that are not travel trailers and that are ten thousand pounds or less
33 declared gross weight:

34 1. On initial registration, a onetime vehicle license tax of \$105.

35 2. On renewal of registration, a onetime vehicle license tax of
36 \$70.

37 D. The vehicle license tax is as follows for a trailer or
38 semitrailer that is not a travel trailer and that exceeds ten thousand
39 pounds declared gross weight:

40 1. On initial registration, a onetime vehicle license tax of \$555.

41 2. On renewal of registration or if previously registered in
42 another state, a onetime vehicle license tax of:

43 (a) If the trailer's or semitrailer's model year is less than six
44 years old, \$355.

45 (b) If the trailer's or semitrailer's model year is at least six
46 years old, \$100.

1 E. The vehicle license tax for an all-terrain vehicle or
2 off-highway vehicle as defined in section 28-1171 is \$3 if the all-terrain
3 vehicle or off-highway vehicle meets both of the following criteria:

4 1. Is designed by the manufacturer primarily for travel over
5 unimproved terrain.

6 2. Has an unladen weight of two thousand five hundred pounds or
7 less.

8 [F. THE VEHICLE LICENSE TAX FOR AN ALL-TERRAIN VEHICLE OR OFF-
9 HIGHWAY VEHICLE AS DEFINED IN SECTION 28-1171 SHALL BE REDUCED BY FIFTY
10 PERCENT OF THE DETERMINATION MADE PURSUANT TO SUBSECTION B IF THE ALL-
11 TERRAIN VEHICLE OR OFF-HIGHWAY VEHICLE HAS AN UNLADEN WEIGHT OF TWO
12 THOUSAND FIVE HUNDRED POUNDS OR MORE BUT UP TO THREE THOUSAND FIVE HUNDRED
13 POUNDS.]

14 ~~[F.]~~ [G.] The vehicle license tax collected pursuant to subsection
15 C, D or E of this section shall be distributed to the recipients
16 prescribed in subsection B of this section based on the percentage of each
17 recipient's rate to the sum of all of the rates.

18 ~~[G.]~~ [H.] For the purposes of this section:

19 1. "Declared gross weight" has the same meaning prescribed in
20 section 28-5431.

21 2. "Travel trailer" has the same meaning prescribed in section
22 28-2003. >>

23 <<Sec. 4. Rulemaking
24 [Not later than twelve months after the effective date of this act,
25 the director of the Arizona department of transportation shall adopt rules
26 for a new off-highway vehicle usage classification for off-highway
27 vehicles that have an unladen weight of two thousand five hundred pounds
28 or more but up to three thousand five hundred pounds.]>>

29
30 Enroll and engross to conform
31 Amend title to conform

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